

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: *Sewage Vacuum Pump and Motor for Dredge Wheeler*

Authority: *Authority permitting other than full and open competition for procurement of these supplies is 10. U.S.C. §2304 (c) (1) as implemented by FAR 6.302-1 (a) (2).*

Prepared by:

Typed Name: Matthew Broussard_____DSN: _____

Title: Mechanical Engineer_____Date: 3/14/2025_____

E-mail: matthew.broussard@usace.army.mil____

(Source Selection information - See FAR 2.101 and 3.104-4)

Contracting Officer:

Typed Name: Anedra A. Baldwin DSN: _____

Date Reviewed: 03/19/25 E-Mail: anedra.a.baldwin@usace.army.mil

Technical Representative:

Typed Name: Matthew Broussard DSN: _____

Title: Mechanical Engineer Date: 3/14/2025

Requirements Representative:

Typed Name: Matthew Broussard DSN: _____

Title: Mechanical Engineer Date: 03/19/25

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager (1)

Typed Name: Matthew Broussard DSN: _____

Signature: UL.1611461808  Digitally signed by
BROUSSARD.MATTHEW.PAUL.1611461808
Date: 2025.03.17 12:09:24 -0400' Date: 3/17/2025

(1) Add Program Executive Officer signature block when item is Program Executive Officer managed.

Justification and Approval
for Other than Full and Open Competition - FAR Part 6

1. Contracting Activity: *New Supply Contract*
2. Description of Action: *Brand Name Requirement*
 - a. This procurement will be a Firm-Fixed Price Contract
 - b. Estimated contract value: \$22,686.22
3. Description of Services/Supplies: *Procure EVAC Online 52 sewage unit vacuum pumps and motors through an EVAC manufacture or authorized distributor.*
4. Authority Cited: *Authority permitting other than full and open competition for procurement of these supplies is 10. U.S.C. §2304 (c)(1) as implemented by FAR 6.302-1(a)(2).*
5. Reason for Authority Cited: *EVAC, is the Original Equipment Manufacturer (OEM) for the Dredge Wheeler's sewage treatment system. The vacuum pumps and motors for the EVAC OnlineVAC 52 sewage unit are critical for the Dredge Wheeler's sewage system. In order for the sewage system to work as designed and for upkeep in the sanitation of the ship, it is required that the Government procure these pumps and motors from the manufacture or an authorized distributor of EVAC to replace the failing pumps and motors.*
6. Efforts to Obtain Competition: *In accordance with FAR 6.302-2(b)(ii), the supplies needed are available only from the original source. A notice will be posted on the SAM.GOV site stating the Government's intention to make a brand name award for the required supplies. The Government will review and consider any and all responses received from interested sources in consideration of future requirements.*
 - a. Subcontracting competition. Due to the proprietary nature of the supplies required, there are no subcontracting opportunities to consider.
7. Actions to Increase Competition: *A notice will be posted on the SAM.GOV site stating the Government's intention to make a brand name award for the required supplies. The Government will review and consider any and all responses received from interested sources in consideration of future requirements.*
8. Market Research: Market research was conducted, and authorized distributors for the Louisiana region are available to supply the pumps and motors. The list of authorized distributors was found on <https://evac.com>.
9. Interested Sources: As stated in paragraph 6 above, the Government will review any and all responses received from interested sources in consideration of future requirements. However, it's in the best interest of the Government to continue pursuit of OEM sewage vacuum pumps and motors.

(Source Selection Information - See FAR 2.101 and 3.104-4)

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10. Other Facts:

a. Currently, all existing Sewage pumps that are installed onboard the Dredge Wheeler are EVAC pumps, manufactured by EVAC." All characteristics for these pumps as well as the piping system were designed and built to run with these specific pumps. If the government were to change to a different manufacturer, then all current design characteristics and the piping system would have to be analyzed and modified to match the new styles. Not only would this incur additional time and effort to perform engineering analysis, it would also result in additional, significant cost to accommodate those changes. It is in the government's best interest that the new pumps be the same type that are currently in use, or "Evac Pumps."

b. FAR 13.106 (b)(1)(i) states that, for purchases not exceeding the simplified acquisition threshold, "contracting officers may solicit from one source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available." In addition, the reporting requirements of FAR Part 6, Competition Requirements, are not applicable to contracts awarded using simplified acquisition procedures under FAR Part 13.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: BROUSSARD.MATTHEW.PAUL.1611461808 Digitally signed by BROUSSARD.MATTHEW.PAUL.1611461808
Date: 2025.03.17 12:09:47 -04'00' Date: 3/14/2025

Typed Name: Matthew Broussard Title: Mechanical Engineer

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: BALDWIN.ANEDRA.ANTOINETTE.1119595432 Digitally signed by BALDWIN.ANEDRA.ANTOINETTE.1119595432
Date: 2025.03.19 09:45:45 -05'00' Date: _____

Typed Name: _____ Title: _____

13. Fair and Reasonable Cost Determination: Marine Management staff will review pricing to ensure that prices are fair and reasonable while keeping in mind current market trends.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Signature: BALDWIN.ANEDRA.ANTOINETTE.1119595432 Digitally signed by BALDWIN.ANEDRA.ANTOINETTE.1119595432
Date: 2025.03.19 09:45:59 -05'00' Date: 03/19/25

Typed Name: Anedra A. Baldwin Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: BALDWIN.ANEDRA.ANT Digitally signed by
BALDWIN.ANEDRA.ANTOINETTE.1119595432
Date: 2025.03.19 09:46:32 -05'00' OINETTE.1119595432 Date: 03/19/25

Typed Name: Anedra A. Baldwin Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of EVAC Online VAC 52 sewage unit vacuum pumps and motors in the amount of \$22,686.22 on another than full and open competition basis pursuant to the authority of *10. U.S.C. §2304 (c)(1) implemented by FAR 6.301-1 (a)(2)*, subject to availability of funds, and provided that the supplies and property herein described have otherwise been authorized for this acquisition.

Signature: _____ Date: _____

Typed Name: _____ Title: _____